

GZ: 2021-0.916.436 dated December 30, 2021 (Case number: DSB-D163.003)

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DECISION

RULING

The Data Protection Authority decides on the application of Emanuel A*** (Applicant) dated November 30, 2021, for the approval of data protection certification criteria as follows:

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The application is rejected.

Legal bases: Art. 42 para. 5, Art. 57 para. 1 lit. n, and Art. 58 para. 3 lit. f of Regulation (EU) 2016/679 (General Data Protection Regulation – GDPR), OJ No. L 119 of May 4, 2016, p. 1; Art. 8 para. 1 of the Federal Constitutional Law (B-VG), BGBl. No. 1/1930 as amended.

REASONING

A. Procedural History

A.1. By submission dated November 30, 2021, the applicant submitted a request for the approval of data protection certification criteria.

A.2. In a statement dated December 1, 2021, the Data Protection Authority communicated the following:

“Subject: Notification from the Data Protection Authority

The Data Protection Authority has received your application for the approval of certification criteria pursuant to Art. 42 GDPR (“XYZ Catalog”) dated November 30, 2021, and notes the following:

1) The application in question contains (only) an abstract description of the project. Certification criteria according to Art. 42 GDPR must contain specific requirements that a controller or processor must comply with and that are to be verified by a certification body as part of a conformity assessment. Although these have not yet been approved by the European Data Protection Board, reference is made to the proposed certification criteria (“GDPR-CARPA”) of the supervisory authority in Luxembourg:

<https://www.dataguidance.com/news/luxembourg-cnps-launches-second-public-consultation>

<https://cnps.public.lu/dam-assets/fr/actualites/national/2018/GDPR-CARPA-Criteria-v10.pdf>

2) It is therefore suggested that the application in question be withdrawn and that you develop specific certification criteria in line with the above considerations.

3) Regardless, it should be noted that the official language according to Art. 8 para. 1 B-VG is German, and the application in question should (at least also) be submitted in German.

You will have the opportunity to respond to this within a period of two weeks from receipt of this letter. Please indicate the case number D163.003 in any submission to the Data Protection Authority.”

A.3. The applicant has not provided any further statement. A corresponding forwarding report and a read receipt are included in the file. There is no error report from an email server.

B. Subject of the Proceedings

It must be verified whether the requirements for the approval of data protection certification criteria pursuant to Art. 42 para. 5 in conjunction with Art. 58 para. 3 lit. f GDPR are met.

C. Findings of Fact

The procedural history described in point A and the submitted application (“XYZ Catalog”) in the version dated November 30, 2021, form the basis for the findings of fact.

Assessment of Evidence: The findings made are undisputed and arise from the file content for case number DSB-D163.003.

D. From a legal perspective, it follows:

D.1. General

The Data Protection Authority is required to approve data protection certification criteria in accordance with Art. 42 para. 5 in conjunction with Art. 58 para. 3 lit. f GDPR.

D.2. Official Language

The submitted certification criteria are not drafted in German, which must be used as the constitutional official language of the Republic in all submissions to Austrian authorities according to Art. 8 B-VG. The applicant has – despite being given the opportunity – not submitted the certification criteria in German, has not requested an extension of the deadline, and has not otherwise communicated further.

The application in question must therefore be rejected for this reason alone.

D.3. Regarding the Application

Regardless, it should be noted that accredited certification bodies within the meaning of Art. 43 para. 1 GDPR can only issue a data protection certification in accordance with Art. 43 para. 2 lit. b of the same law in conjunction with § 4 para. 3 no. 3 ZeStAkk-V, BGBl. II No. 79/2021 as amended, solely on the basis of approved certification criteria.

This implies that certification criteria must contain sufficiently concrete requirements that allow for the verification of compliance with certain aspects of the GDPR (see in detail the EDPB Guidelines 1/2018 on certification and the determination of certification criteria under Articles 42 and 43 of Regulation [EU] 2016/679 Version 3.0 para. 32 et seq.).

However, the submitted application contains (only) an abstract description of the project without sufficiently concrete requirements that a controller or processor must adhere to in data processing (specifically: the proposed method for “anonymization”).

The application in question must therefore also be rejected for this reason.

D.4. Conclusion

Based on these considerations, the application for the approval of data protection certification criteria is deemed inadmissible.

The application must therefore be rejected as stated.

The applicant is naturally free – taking into account the explanations of this decision – to submit a new application for the approval of data protection certification criteria.